ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	56th Commission Meeting
DATE:	23 November, 2021
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA	DECISIONS
1.	Update progress on International Anti-Corruption Day (IACD) – ED	Besides noting the progress made against the six programs being planned for commemoration of the IACD on 9 December 2021, the Commission endorsed the draft program for launching of e-Learning course for civil servants during the Day at the ACC Choesham with following specific comments to: • Explore avenues to provide speaking time slots for key partners viz. RAA & OAG to underscore the importance of the Day; • Review the content of the Training Manual for Community Score Card developed by the BTI before including as one of the agenda for the Day; and • Extend invitation to media firms for the launch of e-Learning course. In addition, Commission directed the ED to share videos developed for the Day with existing Integrity Clubs and coordinate a letter from the Chairperson to the Club members.
2.	Update on MacBook proposal – ICTS & SS *Follow-up to 50th Commission Meeting held on 12 October 2021*	With regard to procurement of MacBook on cost sharing basis, the ICTS and Head of SS apprised on the advice received from Ministry of Finance that such procurement is currently not permitted under the RGoB funding due to various complications related to inventory management. However, agencies may do so, if there is project funding with necessary administrative approvals. Nonetheless, the plan of the Ministry to adopt a guideline/protocol on procurement of laptops/Macbook, which also includes provisions for allowing users to transfer ownership after expiry of guarantee period, may address the concern. To this, the Commission directed the Head of SS to wait until the guideline/protocol is finalized, as there is no pending request for replacement of laptops.
3.	Update on complaints qualified against LG aspirants – DoPS	In addition to 11 cases pertaining to LG aspirants shared with the RAA, the Commission endorsed to share the remaining 14 cases related LG aspirants to the RAA. Besides this, the Commission endorsed to dispose the left-over seized items worth Nu. 47,300.00 as part of JPLP judgment

		enforcement by selling it to shops in Thimphu. However, the Commission directed to strictly refrain from selling it to the ACC staff.
4.	Model Public Service and Business Code of Conduct – LD & PD	Besides the gaps observed in the draft Model Public Service Code of Conduct, the Commission directed the LD to further enrich the Code with following specific comments: • Refer His Majesty's address in relation to values and standards as a Bhutanese citizen including experiences and lessons learnt during investigation, prosecution and adjudication of cases to make the Code more contextualized and practical for implementation. • Refer findings emanating from the analysis of administrative complaints against LG. • Explore linking the standards and provisions of the Code vis-à-vis the findings of the NIA to enable effective assessment of the standards. • Include incentive mechanisms to promote ingenuity and innovation and at the same time ensure strong enforcement against any malfeasance.
5.	Strategic roadmap on ADS – ADMD	Commending the effort made by the Division in coming up with a comprehensive roadmap *(PowerPoint slide attached)* in short span of time, the Commission endorsed the roadmap for implementation with following specific directives to: • Enhance declaration and management of conflicts of interest by integrating ADS in the existing data repositories (like eGP, ZESt & National Digital Identity, etc.). This is expected to provide users of other business systems with some information from ADS to facilitate management of conflict of interest. • Prepare for amendment of the AD Rule 2017 alongside AD system enhancement in the areas of emerging developments viz. declarant list under respective schedules based on vulnerabilities, sharing/use of AD information, declaration period, and post retirement declaration, among others. Further, revisit the Affidavit on usage and accessibility of AD information by the declarant. • Include feature in the ongoing enhancement of AD system to enable any declarant to blow the whistle on someone regarding illicit enrichment in his or her respective agencies besides ADA. This is expected to enhance life style watch. • Start with proactive verification of all 205 elected Gups and random sampling of Mangmi and Tshogpa based on the availability of AD information from past declaration, assumption of office, and declaration made to the ECB during the election nomination. • Include vacation of office for Schedule I as one of the mandatory parameters under existing system of seeking No Objective Certificate towards enhanced compliance and serve

		as a reference point for post-retirement DA verification. • Include disclaimer on the accuracy of data until completion of systems integration while sharing the AD information with other agencies (NHDC, NPPF, etc.). • Include vulnerable positions in the De-suung, Gyalsung and RIGSS under Schedule II. • Explore convincing the Zhung Dratshang formally and if not invoke sections under the ACAB 2011 to regulate AD in Zhung Dratshang. In addition, the Commission directed the LD to start working on drafting a Rule on Integrity Vetting System as it is expected to implement as mandatory requirement. Moreover, integration of the IVS with the ADS & CIMS must be explored to promote uniformity and consistency in data driven integrity promotion. Accordingly, the IVS must be classified into some kind of red, green and white lists based on the number of integrity violations. Update on the enhancement of ADS deferred.
6.	Practical steps to operationalize Strategic Anti-Corruption Roadmap 2030 – PPS	Deferred

Commissioner **Commissioner** **Chairperson**